

IN THE COURT OF APPEALS OF THE STATE OF OREGON

STATE OF OREGON,

Plaintiff - Respondent

v.

ASHLE PENN,

Defendant - Petitioner

Washington County Circuit Court
No. 24CR49043

Appellate Court No.: TBD

EMERGENCY PETITION FOR
EXTRAORDINARY RELIEF AND
MOTION FOR STAYEMERGENCY MOTION UNDER ORAP
7.35**MOTION**

Petitioner Ashle Penn respectfully moves this Court, pursuant to ORAP 7.05 and ORS 19.350, for an emergency stay of enforcement or execution of a warrant currently pending in Washington County Circuit Court. This motion is filed in connection with a timely and unresolved motion to quash the warrant filed July 01, 2025, which remains pending before the trial court. Petitioner seeks only to preserve the status quo until the trial court has ruled on the motion, to prevent irreparable harm and to ensure the motion receives meaningful judicial review.

STATEMENT OF FACTS

On or about July 01, 2025, Petitioner filed a motion to quash a warrant issued in the underlying case. The motion raises multiple issues regarding the procedural and evidentiary basis for the warrant, including concerns related to factual misidentification, potential fabrication or omission of material evidence, and irregularities in the warrant's issuance or communication to Petitioner.

To date, no ruling has been issued on the motion to quash. Petitioner attempted to obtain a hearing to present the court with constitutional defects and flaws in the State's investigation and prosecution of Petitioner, but Petitioner was denied such a hearing and was informed that no action would be taken until Petitioner was appointed a licensed attorney. Petitioner remains unrepresented before the court and has not been afforded a hearing to present the defects in the state's case to include the entry of a warrant into the Law Enforcement Data System (LEDS) by a community corrections supervising officer that was executed when Washington County Sheriff's Officer entered petitioner's home and gathered information that would be used later to revoke bail and issue an arrest warrant. The supervising officer had no warrant, judicial or administrative. The motion to quash the warrant issued because of unlawfully gathered information is still awaiting a decision by the trial court. As of this filing, the motion remains pending and undecided.

The warrant remains active. Petitioner has been advised by law enforcement personnel that arrest may occur at any time. Petitioner is not currently in custody but faces an imminent risk of arrest and irreparable harm based on the challenged warrant.

DIRECT CAUSAL CONNECTION - UNLAWFUL ENTRY AND WARRANT

The warrant currently pending against Petitioner is not merely related to the challenged unlawful entry—it is the direct product of that constitutional violation. The causal chain is undisputed:

1. On May 10, 2025, law enforcement officers entered Petitioner's home without consent, warrant, or exigent circumstances, falsely claiming warrant authority that was never produced.

2. During this unlawful entry, officers observed and documented information about Petitioner's residence, activities, and circumstances, which they included in their incident reports.
3. The same supervising officer (Molly Bineham) who processed the data entry of an administrative "warrant" that purportedly authorized home entry subsequently used the officers' reports from that entry as evidence to support revocation of Petitioner's bail.
4. The current arrest warrant for Petitioner issued directly from this bail revocation, which was predicated entirely on information officers gathered during their unlawful presence in Petitioner's home.

This creates an unbroken chain of constitutional violation: unlawful entry → unlawful information gathering → bail revocation → arrest warrant. Under the fruit of the poisonous tree doctrine, the warrant now pending against Petitioner is tainted by the original Fourth Amendment violation and cannot provide lawful basis for her arrest.

The trial court's refusal to adjudicate the motion to quash while this tainted warrant remains executable creates a constitutional emergency. Petitioner faces imminent arrest on a warrant that exists solely because law enforcement violated her constitutional rights in her own home. Each day of delay compounds the original violation and denies her the due process protections guaranteed by the Fourth and Fourteenth Amendments.

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CONSTITUTIONAL VIOLATIONS REQUIRING EMERGENCY RELIEF

I. DENIAL OF ACCESS TO COURTS BASED ON PRO SE STATUS

The trial court has systematically denied Petitioner's constitutional right of access to courts based solely on her lack of legal representation. The court has repeatedly stated that Petitioner "doesn't get to decide what gets filed" in her case because she lacks a law license and has refused to rule on constitutionally required motions while Petitioner remains unrepresented due to the state's inability to provide counsel.

This creates a constitutional crisis: Petitioner faces imminent arrest on a challenged warrant while being denied the right to have that challenge adjudicated. The court cannot condition constitutional protections on legal representation that the state has failed to provide.

Under *Johnson v. Avery*, 393 US 483, 485 (1969), and *Bounds v. Smith*, 430 US 817, 828 (1977), pro se defendants possess the same fundamental right of access to courts as represented parties. The Supreme Court has consistently held that "the right of access to the courts is one of the most fundamental of all constitutional rights," and this right "cannot be denied or obstructed by the State." *Chambers v. Baltimore & Ohio R.R.*, 207 US 142, 148 (1907).

II. PATTERN OF CONSTITUTIONAL DENIAL

The trial court's position effectively creates a Catch-22: while the state fails to provide counsel, the court refuses to acknowledge Petitioner's pro se filings necessary to protect her liberty. This systematic denial of access to courts, particularly regarding

challenges to detention and arrest warrants, violates clearly established federal constitutional law and requires immediate appellate intervention.

The constitutional violation is ongoing and irreparable — each day the court refuses to adjudicate Petitioner's warrant challenge while threatening arrest denies fundamental due process protections guaranteed by the Fourth and Fourteenth Amendments.

APPLICATION OF EMERGENCY STAY FACTORS

This Court should grant emergency relief under the established four-factor test:

A. LIKELIHOOD OF SUCCESS ON THE MERITS

Petitioner has a strong likelihood of success on her constitutional claims. The trial court's refusal to adjudicate warrant challenges based solely on lack of legal representation violates clearly established Supreme Court precedent. Additionally, the warrant appears to be based on information gathered through unlawful entry into Petitioner's home by officers acting on non-existent warrant authority — a clear Fourth Amendment violation that undermines the warrant's validity.

B. IRREPARABLE HARM

Petitioner faces imminent loss of liberty through arrest on a constitutionally defective warrant that exists solely as a product of the unlawful entry into her home. This harm is both imminent and irreparable for multiple reasons:

First, the warrant itself is fruit of the poisonous tree, derived entirely from information officers unlawfully gathered during their unauthorized entry into Petitioner's residence on May 10, 2025. The supervising officer who requested the original

administrative "warrant" used the arresting officers' reports from that unlawful entry to support revocation of Petitioner's bail, leading directly to the current arrest warrant.

Second, loss of freedom, even briefly, constitutes irreparable harm that cannot be compensated monetarily. See *Prison Legal News v. Lehman*, 397 F3d 692, 699 (9th Cir 2005). Here, that harm is compounded by its unconstitutional origin—Petitioner would be arrested based on evidence that should never have been gathered in the first place.

Third, execution of the warrant would moot the very constitutional challenge that seeks to vindicate her Fourth Amendment rights. Once arrested on the tainted warrant, Petitioner's ability to demonstrate the unlawful chain of causation becomes academic rather than preventive.

The constitutional violation is ongoing and irreparable—each day the court refuses to adjudicate Petitioner's warrant challenge while threatening arrest based on unlawfully obtained evidence denies fundamental due process protections guaranteed by the Fourth and Fourteenth Amendments.

C. BALANCE OF HARDSHIPS

The balance tips strongly in Petitioner's favor. A brief stay preserves constitutional protections while causing minimal burden to the state — the warrant can be executed after judicial review if found valid. Conversely, executing an invalid warrant causes irreversible constitutional injury.

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D. PUBLIC INTEREST

The public interest strongly favors protecting constitutional rights and ensuring proper judicial review of detention orders. Allowing arrest on unreviewed, potentially invalid warrants undermines public confidence in the judicial system.

EMERGENCY APPELLATE JURISDICTION

This Court has emergency jurisdiction under ORAP 3.05 and Oregon Constitution Article VII to protect constitutional rights when trial courts fail to act. The ongoing constitutional violations and imminent threat of arrest create the extraordinary circumstances requiring immediate appellate intervention.

ARGUMENT

This Court has authority under ORAP 7.05(2)(b) to grant a stay where necessary to prevent irreparable harm or to maintain the status quo during the pendency of a related motion or appeal. See also ORS 19.350(1)(b). The circumstances of this case meet the criteria for emergency relief.

The purpose of the pending motion to quash is to challenge the legal sufficiency and factual basis of the warrant. If the warrant is executed before the trial court rules on the motion, Petitioner will suffer immediate and irreparable harm, including loss of liberty and disruption of due process rights. Moreover, execution of the warrant would moot the relief sought in the motion to quash, effectively depriving Petitioner of the opportunity for meaningful judicial review.

In *State ex rel Mix v. Newell*, 221 Or App 281, 284, 189 P3d 1190 (2008), this Court recognized the availability of extraordinary relief where no other adequate remedy

exists. A similar principle supports the issuance of a stay where a lower court has not acted on a pending dispositive motion and the risk of enforcement would undermine the right to judicial review.

This motion does not seek a ruling on the merits of the motion to quash. It merely requests a stay of warrant enforcement until such time as the trial court adjudicates that motion. Without a stay, Petitioner's rights to be heard and to preserve the integrity of the judicial process may be irreparably compromised.

NOTICE - INTENT TO APPEAL & EMERGENCY APPELLATE JURISDICTION

Petitioner hereby provides notice of her intent to file an interlocutory appeal from the trial court's denial of constitutional protections and procedural due process. The trial court committed reversible error by:

1. Ruling on Petitioner's previous counsel's motion to dismiss approximately two months after the omnibus hearing, despite the court's explicit representation that Petitioner would not be prejudiced by the lack of counsel because another attorney would be appointed;
2. Denying Petitioner's constitutional right of access to courts based solely on her pro se status, while simultaneously failing to provide the legal representation that would cure this supposed deficiency;
3. Refusing to acknowledge or rule upon Petitioner's timely filed demurrer, stating that Petitioner "doesn't get to decide what gets filed" in her case due to lack of a law license;

4. Creating an unconstitutional Catch-22 where Petitioner cannot obtain judicial review of constitutional violations because she lacks counsel, while the state fails to provide the counsel that would remedy this barrier.

These violations present substantial constitutional questions of first impression regarding the interplay between the right to counsel, access to courts, and due process protections for pro se defendants facing imminent detention.

This Court has emergency jurisdiction under ORAP 3.05 and Oregon Constitution Article VII to protect constitutional rights when trial courts fail to act. The ongoing constitutional violations and imminent threat of arrest create the extraordinary circumstances requiring immediate appellate intervention pending formal filing of the interlocutory appeal.

REQUEST FOR RELIEF

Petitioner respectfully requests:

1. An immediate order staying any enforcement or execution of the warrant issued in the above-captioned trial court matter.
2. That the stay remains in effect until:
 - a. The trial court rules on the pending motion to quash; or
 - b. This Court determines whether further appellate or writ review is warranted.
3. Any other relief that this Court deems just and appropriate to protect the status of the underlying proceedings and ensure meaningful access to judicial review.

PRESERVATION OF STATUS QUO PENDING JUDICIAL REVIEW

The status quo that this Court should preserve is Petitioner's current liberty status—remaining free from arrest while her constitutional challenge to the warrant's validity receives meaningful judicial review. This represents the proper constitutional baseline: no person should be arrested on a warrant that exists solely due to unlawful government conduct until that challenge has been adjudicated.

The status quo is not the mere existence of an active warrant, but rather the pre-execution state where Petitioner retains her liberty while the constitutional defects in that warrant are properly reviewed. To define the status quo as simply maintaining an active (but unexecuted) warrant would ignore the constitutional violation that created it and deny Petitioner the very protection the Fourth Amendment guarantees.

Critically, this requested stay preserves judicial resources and constitutional integrity. If the motion to quash succeeds, execution of the warrant before that ruling would create irreversible harm and waste judicial resources. If the motion fails after proper review, the warrant remains available for execution. The temporary stay thus serves judicial economy while protecting constitutional rights.

The public interest strongly supports this interpretation of status quo, as it ensures that arrest warrants—particularly those challenged on constitutional grounds—receive proper judicial scrutiny before depriving citizens of their liberty.

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DATED this 23rd day of July 2025.

Respectfully submitted,

/s/ AshLe' Penn
ASHLE PENN
Pro Se Petitioner

17548 NW Springville Rd #9,
Portland, OR 97229
424.242.3374
Ashlepenn.ap3@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that on July 23, 2025, I served a true and correct copy of the foregoing Emergency Motion for Stay of Execution of Warrant by electronic service upon the following:

Office of the District Attorney – Washington County
150 N. First Avenue, Suite 300
Hillsboro, OR 97124

Washington County Circuit Court
145 NE 2nd Avenue
Hillsboro, OR 97124

DATED: July 23, 2025

/s/ AshLe' Penn

ASHLE PENN

Pro Se Petitioner